

AI Emotion Recognition in the Workplace

Article 6 & Annex III — Emotion Inference Systems

Description

An employer installs AI-enabled cameras and microphones throughout the office to continuously monitor employees' facial expressions, voice tone, and body language, inferring their emotional states. The system flags 'low engagement' or 'stress' scores to managers, who use them in performance reviews and promotion decisions.

Why It May Violate the EU AI Act

- Emotion recognition in employment contexts is explicitly listed as a high-risk use under Annex III.
- Article 5(1)(f) restricts biometric categorisation to infer sensitive attributes like emotions.
- Continuous covert monitoring violates workers' privacy and dignity rights.
- Emotion inference is scientifically contested — acting on it causes unjustified harm.

Real-World Context

Tools from vendors like Affectiva, Realeyes, and HireVue have been marketed for employee monitoring. The UK ICO and EU data protection authorities have raised enforcement actions. Under the AI Act, such systems in workplaces face strict transparency, consent, and accuracy requirements that most current products cannot meet.

This document is for educational and compliance awareness purposes only. It does not constitute legal advice. Consult qualified EU AI Act legal counsel for specific guidance.